

HEADNOTE

“Article 45 UPCA means that also the written procedure of the Court shall, in principle, be open to the public unless the Court decides to make it confidential, to the extent necessary, in the interest of one of the parties or other affected persons, or in the general interest of justice or public order. If a person has made an application under Rule 262.1(b) for access to pleadings or evidence and provided a credible explanation for why he/she wants access, the application shall be approved unless it is necessary to keep the information confidential.”

COURT
Nordic-Baltic Regional Division

PATENT
EP3653540

KEYWORDS

Rule 262.1(b) RoP request (partially appro...

PROCEEDINGS
Confidentiality order

Storage systems and methods for
retrieving units from a storage system

Article 45 Public proceedings

SUMMARY

The Nordic-Baltic Regional Division issued a decision on a confidentiality order. The patent at issue relates to storage systems and methods for retrieving units from a storage system. According to the headnotes of the decision, Article 45 of the Unified Patent Court Agreement establishes that written proceedings must generally be open to the public unless the Court determines that confidentiality is necessary to protect a party's interests or safeguard justice and public order. When a person requests access to pleadings or evidence under Rule 262.1(b) with a credible explanation for their request, the Court must grant access unless keeping the information confidential is genuinely required.